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বাংলাদেশ সুপ্রীমকোর্ট
হাইকোর্ট বিভাগ

আপীল সম্পর্কিত
ফৌজদারী

জেলা-Bogura

ফৌজদারী কার্যবিধি আইনের ধারার অধীনের রিভিশন
নং

Md. Abdul Latif Mirja

আবেদনকারী

মাধ্যম Mr. Md. Rabiul Karim, Advocate

বনাম

The State and another

প্রতিপক্ষ

Mr. Md. Shafiquel Islam Siddique, D.A.G with
Mr. Mohammad Nurul Amin, A.A.G

প্রথম আদালত

ম্যাজিস্ট্রেট,

তারিখ

২০

শাস্তি ও দণ্ডাদেশ

Present:

Mr. Justice Md. Shohrowardi

আপীল আদালত

তারিখ

২০

কাগজপত্র বা আদে- শের ক্রমিক নং	তারিখ	নোট এবং আদেশ	স্বাক্ষর
	<u>03.10.2023</u>	Heard the learned Advocate Mr. Md. Rabiul Karim who appeared on behalf of the convict petitioner and the learned Deputy Attorney General Mr. Md. Shafiquel Islam Siddique who appeared on behalf of the State. The delay of 33 days in filing criminal revision is condoned. Records be called for. Let a Rule be issued calling upon the opposite parties to show cause as to why the impugned judgment and order dated 25.06.2023 passed by the Additional Sessions Judge, Sixth Court, Bogura in Criminal Appeal No. 228 of 2023 affirming the judgment and order dated 30.01.2023 passed by the Joint Sessions Judge, Third Court, Bogura in Sessions Case No. 2268 of 2020 arising out of C.R. Case No. 181 of 2020 under Section 138 of the Negotiable Instruments Act, 1881 convicting the petitioner under Section 138 of the Negotiable Instruments Act, 1881 and sentencing him to suffer simple imprisonment for 04(Four) months and fine of Tk. 20,0000 (two lac) only should not be set aside and/or such other or further order or orders passed as to this Court may seem fit and proper. The Rule is made returnable within 4(four) weeks from date.	

		Pending hearing of the Rule realization of fine be stayed. Learned Advocate Mr. Md. Rabiul Karim appearing on behalf of the convict-petitioner submits that the petitioner shall take step to settle the dispute between the parties regarding the issuance of the cheque in favour of the complainant-opposite party. Considering the submission of the learned Advocate of the convict petitioner, I am of the view that ends of justice would be best served if the convict-petitioner is enlarged on bail. Pending hearing of the Rule, let the convict petitioner Md. Abdul Latif Mirja, son of late Md. Tofayal Hossain be enlarged on bail for 6(six) months from the date on furnishing bail bond to the satisfaction of the Additional Sessions Judge, Sixth Court, Bogura. The complainant is at liberty to file an application for withdrawal of 50% of the cheque amount deposited by the convict-petitioner before filing the appeal. The Court below is directed to consider the application for withdrawal of the money, if any. The trial Court shall dispose of the application, if any, within 01(one) month.